2. The application of the Christian concept of ‘religion’ to Indic OET gave rise to the debate as to whether Hinduism was a ‘religion’ or ‘a way of life’.

I will now elaborate further upon each of these positions and demonstrate them through a few landmark judgments of the Supreme Court of India.

First, the application of the ERP test by the Supreme Court broadly translates to an exercise undertaken to identify whether a certain practice falls within the realm of religion or in the secular realm, in order to determine the extent of protection accorded to it from State interference under the Constitution. This test was laid down by the Supreme Court in the landmark judgment delivered by a seven-Judge Bench in 1954, in the case of *The Commissioner, Hindu Religious Endowments, Madras* v. *Sri Lakshmindra Tirtha Swamiar of Sri Shirur Mutt*, popularly known as the ‘Shirur Math Judgment’.[9] This judgment was delivered in the context of a challenge to the constitutionality of the Madras Hindu Religious and Charitable Endowments Act of 1951. However, before I proceed to discuss the Shirur Math Judgment, a brief history of the Madras Hindu Religious and Charitable Endowments Act, 1951, itself is important to demonstrate the coloniality in the treatment of Indic religious institutions by the independent Indian State.

Owing to the significant resources attached to temples, the East India Company began interfering with the administrative structures of temples citing corruption in their administration as the primary pretext. After all, the colonial assumption was that since heathens were inherently corrupt, their institutions too must be dens of corruption and avarice. This led to the British policy of centralised collection as well as distribution of all temple revenues within the territories under its control. The policy also included audit of funds used by temple authorities and bureaucratic control over temple administrators. This policy resulted in undermining the autonomous, localised, community-driven and self-sufficient nature of temple administration by making it increasingly dependent on a centralised bureaucracy. By 1789, a Board of Revenue was established by the Company to take charge of temples in the Madras Presidency, which was then followed by the Madras Endowments and Escheats Regulation of 1817 whose preamble reads as follows: